85 Amendment 85: Plain Language Ballot Titles

Placed on the ballot by citizen initiative • Passes with 55 percent of the vote

Ballot Title

Shall there be an amendment to the Colorado Constitution concerning ballot question language, and, in connection therewith, requiring all state and local ballot questions to be written in plain language and at no more than an 8th grade reading level and prohibiting a state statute from requiring language that conflicts with these requirements in ballot questions for citizen-initiated measures?

What Your Vote Means

YES A "yes" vote on Amendment 85 requires that ballot titles be written in plain language, defined as an eighth-grade reading level, and prohibits any law from interfering with this requirement.

NO A "no" vote on Amendment 85 maintains current law, which requires plain language for ballot titles, but does not specify a particular grade-level reading standard.

86 Amendment 86: Requirements for Off-Cycle Congressional Redistricting

Placed on the ballot by citizen initiative • Passes with 55 percent of the vote

Ballot Title

Shall there be an amendment to the Colorado Constitution concerning congressional redistricting, and, in connection therewith, reenacting the current process for congressional redistricting in the Colorado Constitution and prohibiting modifications to a final map unless at least three public meetings are held, the modifications do not have the effect of dividing communities of interest or purposefully favoring one political party, and are approved by the congressional redistricting commission and the Colorado Supreme Court?

What Your Vote Means

YES A "yes" vote on Amendment 86 requires the Colorado Independent Congressional Redistricting Commission to approve any new congressional districts proposed outside of a scheduled redistricting year.

NO A "no" vote on Amendment 86 continues the current requirements for changing congressional districts every ten years.

85 Amendment 85: Plain Language Ballot Titles

Placed on the ballot by citizen initiative • Passes with 55 percent of the vote

Amendment 85 proposes amending the Colorado Constitution to:

- require that ballot titles be in plain language, written at no more than an eighth-grade reading level; and
- prohibit laws that require specific language in initiative ballot titles, if the laws interfere with plain language in the ballot title.

What Your Vote Means

YES A "yes" vote on Amendment 85 requires that ballot titles be written in plain language, defined as an eighth-grade reading level, and prohibits any law from interfering with this requirement.

NO A "no" vote on Amendment 85 maintains current law, which requires plain language for ballot titles, but does not specify a particular grade-level reading standard.

Summary and Analysis of Amendment 85

How do measures appear on the ballot and how are ballot titles written?

A person may propose a new law or change to existing laws through the initiative process. Through this process, the change may be placed on the ballot if the person collects enough signatures from registered voters.

Before collecting signatures, every initiative receives a ballot title written by the state Title Board. The board is made up of representatives from the Attorney General's office, the Secretary of State's office, and the legislature's legal office. The ballot title is a brief statement intended to fairly and accurately represent the intent and meaning of an initiative.

State law requires that the Title Board write ballot titles that are brief and help voters understand the effect of a "yes" or "no" vote on the measure. The board must write titles in plain language, that are understandable by the widest possible audience, and that avoid legal, technical, or specialized terminology, when possible.

85 Plain Language Ballot Titles

The state legislature may also refer measures to the ballot. When the legislature refers a measure, the legislature writes the ballot title. State law requires that bills and bill titles be written in plain, nontechnical language, use words with common meaning, and be understandable to the average reader.

What does Amendment 85 do?

Amendment 85 requires that all ballot titles be in plain language, written at no more than an eighth-grade reading level. The measure does not define plain language or designate who will determine if ballot titles meet the standard. An eighth-grade reading level is described as one that is easily and fully understood by a majority of people. This typically includes short sentences, familiar words, and a conversational tone.

Amendment 85 also prohibits laws requiring citizen initiatives to include language in the ballot title that may interfere with the plain language requirement. The ballot titles for measures referred by the state legislature are not subject to this prohibition. There are several current laws that require additional language in ballot titles. For example, if a citizen initiative raises or lowers state taxes, the initiative's title must include specific language describing the changes and the impact on taxpayers. For citizen initiatives that reduce tax collections, the title must include an estimate of potential state spending reductions and how reduced revenue might impact the three largest areas of government spending.

Arguments For Amendment 85

1) While ballot titles are supposed to be written as plainly as possible, this measure provides additional guidance as to what that means by requiring an eighth-grade reading level as the standard. Providing a constitutional standard will help in crafting simple titles that voters may better understand when considering their vote, and may help them to navigate complicated and technical information when trying to understand a measure's impact.

2) The measure creates a constitutional protection against the state legislature interfering with plain language in initiative ballot titles. Citizen initiatives are a way for the public to pass laws without restrictions created by the legislature. This measure ensures that no future legislature may add laws or change existing laws to create complicated or confusing initiative ballot titles.

Arguments Against Amendment 85

1) This measure is unnecessary as state law already provides ample guidance for the preparation of ballot titles in plain language. Ballot titles must convey important information to voters about complex policies. This measure creates a constitutional standard with no guidance about how its requirements are different from current law. This could lead to more challenges of initiative ballot titles, impacting the initiative process.

2) This measure puts vague and undefined language in the constitution, which could prevent the creation of laws to help voters better understand the effects of ballot measures. Laws that add language to ballot titles could be prohibited, even if that language provides critical information for voters. The measure may lead to challenges of existing laws that help voters understand how their vote affects state and local programs and funding.

Information about the organizations supporting and opposing this measure is available on the Colorado Secretary of State's website:

www.coloradosos.gov/pubs/elections/Initiatives/ballot/contacts/2026.html

Fiscal Impact of Amendment 85

State Spending

The Title Board includes representatives from the Department of State, the Attorney General's Office, and the General Assembly. The measure may minimally increase workload for the Title Board to update its standards for plain language and what constitutes an eighth-grade reading level and to apply these standards when setting titles for citizen-initiated ballot measures.



mail ballot. A voter may alternatively include the last four digits of another form of Colorado identification that meets the requirements of the Federal Real ID Act of 2005 or successor legislation. If the voter fails to fill out all or part of the required affirmation, or if an election judge is unable to confirm that the information provided matches the voter's information contained in the statewide voter registration database, the county clerk and recorder or other designated election official must send notice to the voter informing them of the process to correct the discrepancy. The county clerk and recorder shall not count the ballot until the discrepancy is corrected.

(2) A discrepancy may be corrected by providing a copy of the voter's identification in subsection (1) of this section, US passport, US Military Identification card, or tribal photo identification, in person or digitally, to the county clerk and recorder or other designated election official.

(3) Notwithstanding subsection (2) of this section, a voter who is provided the right to vote otherwise than in person under section (b)(2)(B)(ii) of the federal "Voting Accessibility for the Elderly and Handicapped Act", 52 U.S.C. sec. 20102 et seq., may provide any form of identification deemed acceptable under section 1-1-104 (19.5) or its successor to correct a discrepancy.

Amendment 85
Plain Language Ballot Titles

The ballot title below is a summary drafted by the professional staff of the offices of the secretary of state, the attorney general, and the legal staff for the general assembly for ballot purposes only. The ballot title will not appear in the Colorado constitution. The text of the measure that will appear in the Colorado constitution below was drafted by the proponents of the initiative. The initiated measure is included on the ballot as a proposed change to current law because the proponents gathered the required amount of petition signatures.

Ballot Title:
Shall there be an amendment to the Colorado Constitution concerning ballot question language, and, in connection therewith, requiring all state and local ballot questions to be written in plain language and at no more than an 8th grade reading level and prohibiting a state statute from requiring language that conflicts with these requirements in ballot questions for citizen-initiated measures?

Text of Measure:
Be it enacted by the People of the state of Colorado:
SECTION 1. In Colorado Constitution Article V, Section 1, **add** (5.6) as follows:
(5.6) Ballot questions shall be in plain language at no more than an eighth-grade reading level. No statute may interfere with this provision by mandating language preceding, following, or in a ballot title of an initiative.

Amendment 86
Requirements for Off-Cycle Congressional Redistricting

The ballot title below is a summary drafted by the professional staff of the offices of the secretary of state, the attorney general, and the legal staff for the general assembly for ballot purposes only. The ballot title will not appear in the Colorado constitution. The text of the measure that will appear in the Colorado constitution below was drafted by the proponents of the initiative. The initiated measure is included on the ballot as a proposed change to current law because the proponents gathered the required amount of petition signatures.

Ballot Title:
Shall there be an amendment to the Colorado Constitution concerning congressional redistricting, and, in connection therewith, reenacting the current process for congressional redistricting in the Colorado Constitution and prohibiting modifications to a final map unless at least three public meetings are held, the modifications do not have the effect of dividing communities of interest or purposefully favoring one political party, and are approved by the congressional redistricting commission and the Colorado Supreme Court?

Text of Measure:
Be it enacted by the People of the state of Colorado:
SECTION 1. In the constitution of the state of Colorado article V, **repeal and reenact** section 44 as follows:
Section 44. Representatives in congress - congressional districts – commission created.
(1) Declaration of the people. The people of the state of Colorado find and declare that:
(a) The practice of political gerrymandering, whereby congressional districts are purposefully drawn to favor